

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

ICA No. 68502 of 2021

Muhammad Shahid & 12 others

vs.

Vice Chancellor, Faisalabad Medical University, Faisalabad

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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21.04.2022 Mr. Mazhar Qayyum Gondal, Advocate for appellants.

Through this Intra Court Appeal, filed under Section 3 (2) of the Law Reforms Ordinance, 1972, the appellants have challenged the order of dismissal of their constitutional petition dated 23.09.2021 passed by learned Single Judge in Chambers, wherein the appellants had prayed for issuance of direction to the respondents to regularize their services with effect from 07.07.2010 instead of 24.05.2017 alongwith pay slips and back benefits accordingly.

2. It is contended by learned counsel for the appellants that this Court vide order dated 07.07.2010 passed in WP No. 9273 of 2010 had directed the respondent university (**‘respondent’**) to regularize the services of the appellants, which order was to be given effect from the date when the same was passed, however, the respondent delayed the matter of compliance of afore-referred orders for seven years and thereafter regularized the petitioners on 24.05.2017, which was also wrongly treated as the date of regularization of service, hence, it is claimed that the date of regularization be ordered to be modified as 07.07.2010.

3. We have gone through the record of the case and the impugned order passed by learned Single Judge in Chambers. It is noted that appellants had not been appointed against any sanctioned or regular post but were serving on temporary basis as Bearers, Sanitary Workers, Ayas, etc. in scale one at Punjab Medical College, Faisalabad ('P.M.C.') (now the Respondent University). The Appellants through Writ Petition No. 7273/2010 titled Muhammad Shahid etc. versus The Principal P.M.C. etc. applied for regularization of their services and to absorb them as permanent employees against permanent posts by claiming that they had been working for a long time and were fully qualified as per law. This Court vide order dated 07.07.2010 passed in said petition directed the respondents to regularize the services of the appellant, however, as no regular post existed with the respondent against which the case of the appellants for regularization could be processed it was found imperative by the respondent to first create such posts so that services of appellants could be regularized. In this scenario as a consequence of meeting of Board of Management of the University held on 15.04.2017, the said posts were created in the respondent on 24.05.2017 and the services of the appellants were regularized with effect from the date of creation of posts.

4. It is settled by now, that the date of regularization of an employee is to be determined according to the policy of regularization under which his services are to be regularized and in case the policy does not provide for any date for regularization, then the date of regularization is to be treated as the date of regularization of services of employees. Reliance in this behalf is placed on **Province of Punjab through Secretary Livestock and Dairy**

Development Department, Government of the Punjab,
Lahore and others versus Dr. Javed Iqbal and others

(2021 SCMR 767), wherein it is provided that date of regularization of contract employees was the date of their regularization under the relevant Regularization Policy. Contractual employee was appointed under a scheme, which was totally different from that of regular appointment and a contractual appointee did not enjoy the right to be appointed on regular basis or to be readily shifted into the regime of regular appointment. Regularization of a contract employee was, therefore, a fresh appointment into the stream of regular appointment. The benefit of regularization extended to them was prospective in nature and there was no legal justification to give it a retrospective application. Consistent governmental policies on regularization had finally manifested themselves in the Punjab Regularization of Service Act, 2018 ("Act") which specifically provided for regularization from immediate effect, therefore, there had been a consistent design behind the scheme of regularization and it has always been conceived from the date of regularization.

5. In the present case, the services of the petitioner have neither been regularized under the Act nor under any policy and prior to said date of regularization, no sanctioned regular post for regularization of the services of the appellants existed with the respondent, besides this Court had not directed the respondent vide order dated 07.07.2010 to regularize the appellants from any particular date, therefore, their case could not be processed from the date prior to the date of creation of posts. Consequently, the learned Single Judge in Chambers has rightly dismissed the constitutional

petition filed by the appellants to regularize their services from retrospective effect and we do not find any reason to interfere in the said order, which even otherwise is based on proper appreciation of record and law on the subject.

6. For what has been discussed above, this appeal being devoid of any merit is ***dismissed***.

(ABID AZIZ SHEIKH) (MUZAMIL AKHTAR SHABIR)
JUDGE JUDGE

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